

1 So can you tell me why they're here? I assume
2 they're Mr. Rosario's --

3 MR. JESSUP: Former counsel.

4 THE COURT: -- former counsel, and they're here
5 on the basis of some subpoena that you issued?

6 MR. ROSARIO: Yes, Your Honor. You had
7 mentioned that the providence of the 911 transcript CDs
8 that were not passed to the defense, that you wanted me
9 to prove to you where those were to be able to provide
10 those. We had 911 emergency services send those to you
11 and Dolan had a copy since 2021.

12 THE COURT: Okay.

13 MR. ROSARIO: So they are here to testify on
14 that and provide those documents.

15 THE COURT: All right.

16 Counsel, do you have the -- I think it's the
17 compact disc or recording that Mr. Rosario referenced?

18 MR. JESSUP: Your Honor, are you talking about
19 the -- well, there's a bunch of things. We have, and
20 was produced to defense counsel, body cam footage, about
21 five videos, as well as the 911 audio, as well as the
22 CAD log. In addition --

23 THE COURT: Okay. Sorry. I'm trying to take
24 this down.

25 A body cam and what else did you provide?

1 MR. JESSUP: The 911 audio calls.

2 THE COURT: What else?

3 MR. JESSUP: And the CAD report. The CAD,
4 C-A-D, report.

5 THE COURT: Right.

6 MR. JESSUP: Along with various other
7 documents.

8 THE COURT: Okay.

9 MR. JESSUP: In addition, Your Honor, these
10 documents were identified in discovery, and last
11 February -- I have a copy of the Compaq subpoena issued
12 by defense to San Francisco Police Department requesting
13 all of this data.

14 THE COURT: Defense issued a subpoena?

15 MR. JESSUP: Correct. Now -- sorry, Your
16 Honor.

17 THE COURT: Go ahead.

18 MR. JESSUP: Prior to current defense counsel's
19 involvement, there was other -- another firm involved on
20 behalf of the defense. All of that -- those items were
21 served on them in the production for discovery as well
22 at Mr. Rosario's deposition, in addition, utilized in
23 the deposition of defendants. Whether or not prior
24 counsel gave that to current counsel, I don't know.

25 THE COURT: Okay.

1 MR. JESSUP: Thank you.

2 THE COURT: All right. Ms. Navaratnasingham.

3 MS. NAVARATNASINGHAM: Yes, Your Honor.

4 So this is news to me. We didn't realize that
5 prior to handling counsel may have received it, and I
6 can't confirm whether that was produced. I take
7 counsel's word, of course, but we -- I can represent to
8 you that our office did not receive the 911 call until
9 the day of the MSC -- the day before the MSC and that
10 was an attachment link. There was no sort of ability to
11 verify whether that was accurate or not.

12 And we were not present -- our office was not
13 on the case when Mr. Rosario's deposition was taken
14 either.

15 THE COURT: I see. Okay.

16 I think there are certain copies of some
17 materials that have been submitted by Mr. Rosario. I
18 think we did get a copy of a reply from someone with the
19 custodian of records for -- it may have been the fire
20 department. Am I correct?

21 You issued a subpoena, Mr. Rosario, for some
22 documents, and they said they no longer have them. I
23 think that was the response.

24 MR. ROSARIO: We were concerned, Your Honor --

25 THE COURT: No. I'm just asking you whether --